



Universität St.Gallen

Introduction to Constitutional Law and Public International Law

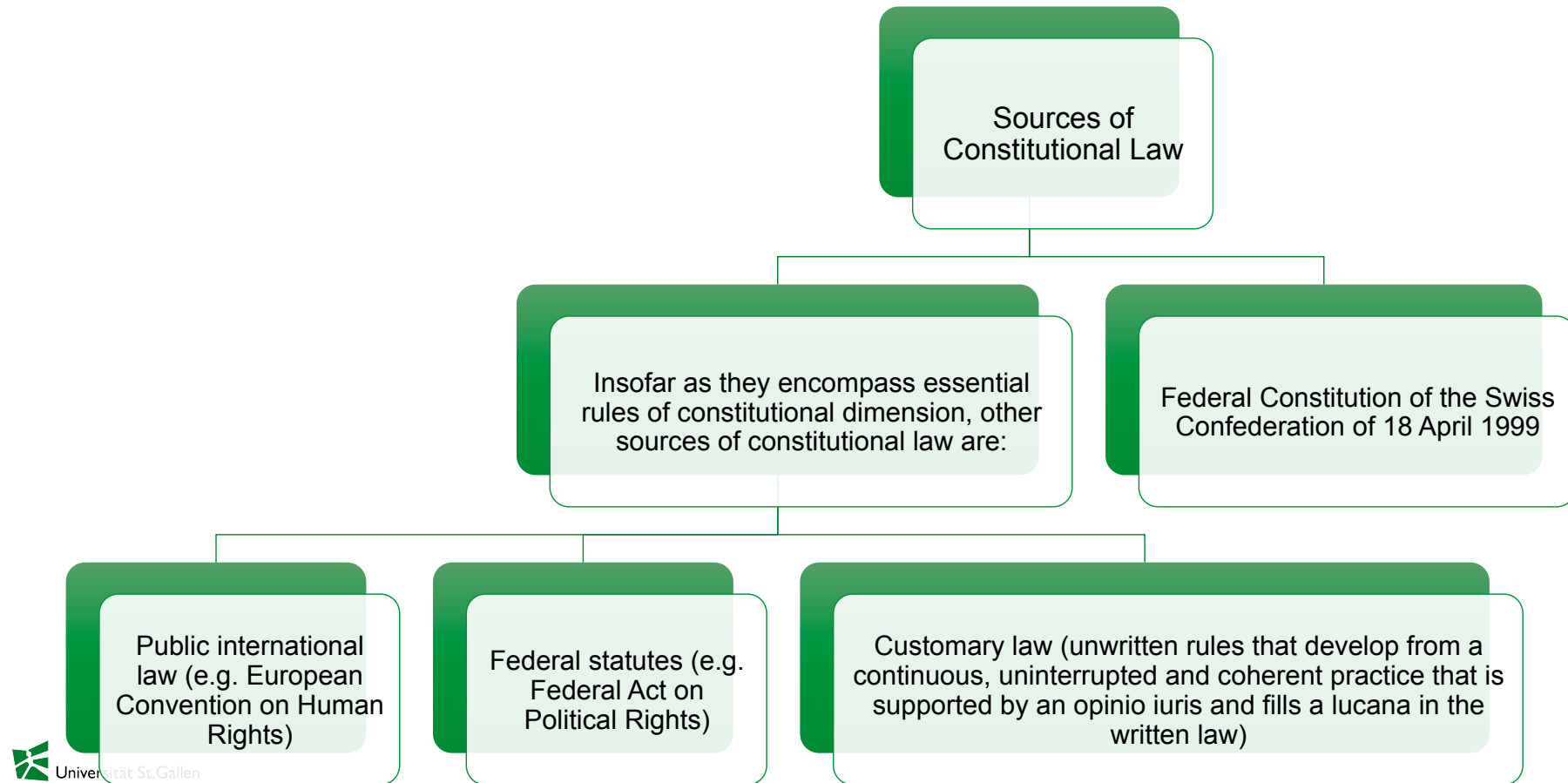
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From insight to impact.

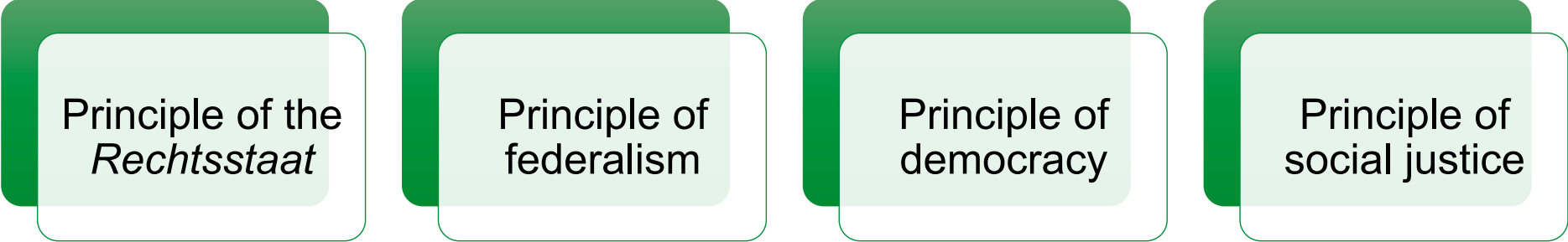
Agenda

- Recap: Sources of Constitutional Law
- Principle of the *Rechtsstaat*
 - Overview
 - In Particular: Formal and Substantive Elements
 - Form and Procedures of Legal Enactments

Recap: Sources of Constitutional Law



Structural Principles



Principle of the
Rechtsstaat

Principle of
federalism

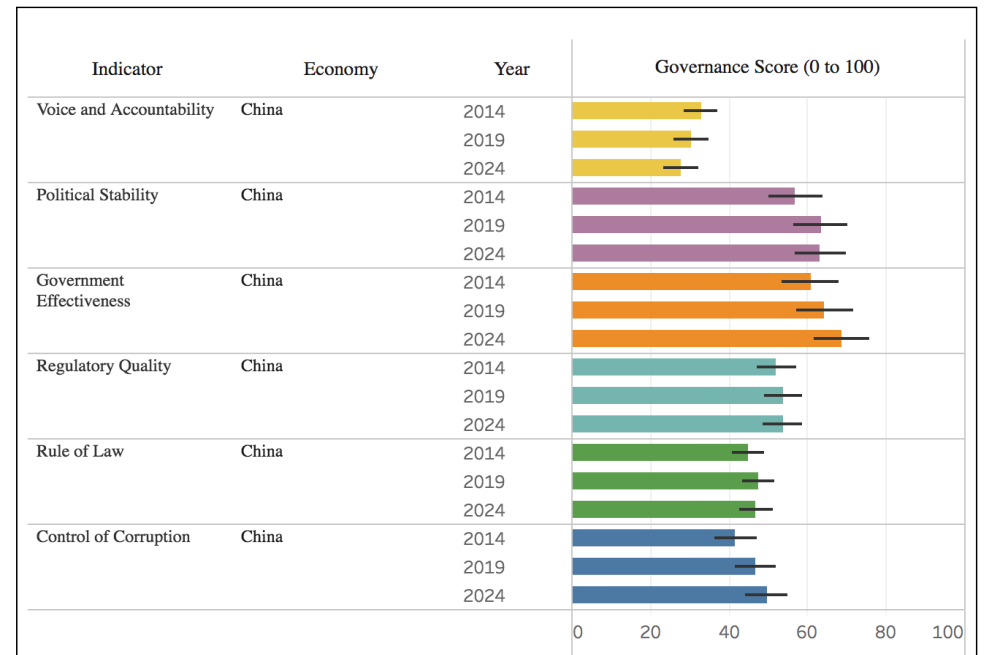
Principle of
democracy

Principle of
social justice

Rechtsstaat and Economic Development

Defining the rule of law as key component to achieve economic development and ensuring the effective provision of public goods and services, international organizations try to conceptualize and systematically measure compliance with the rule of law worldwide based on various objective criteria (e.g. World Justice Project, 2025; World Bank Worldwide Governance Indicators Project, 2024).

World Bank Group – Worldwide Governance Indicators



Principle of the Rechtsstaat

The main idea behind the *Rechtsstaat* (the law-based-state) principle is to limit the power of the state by law in order to protect individuals from the arbitrary exercise of authority.

Principle of the Rechtsstaat

Ancient Greece

Plato and Aristotle developed the idea that law has higher authority and should impose limits on human rulers.

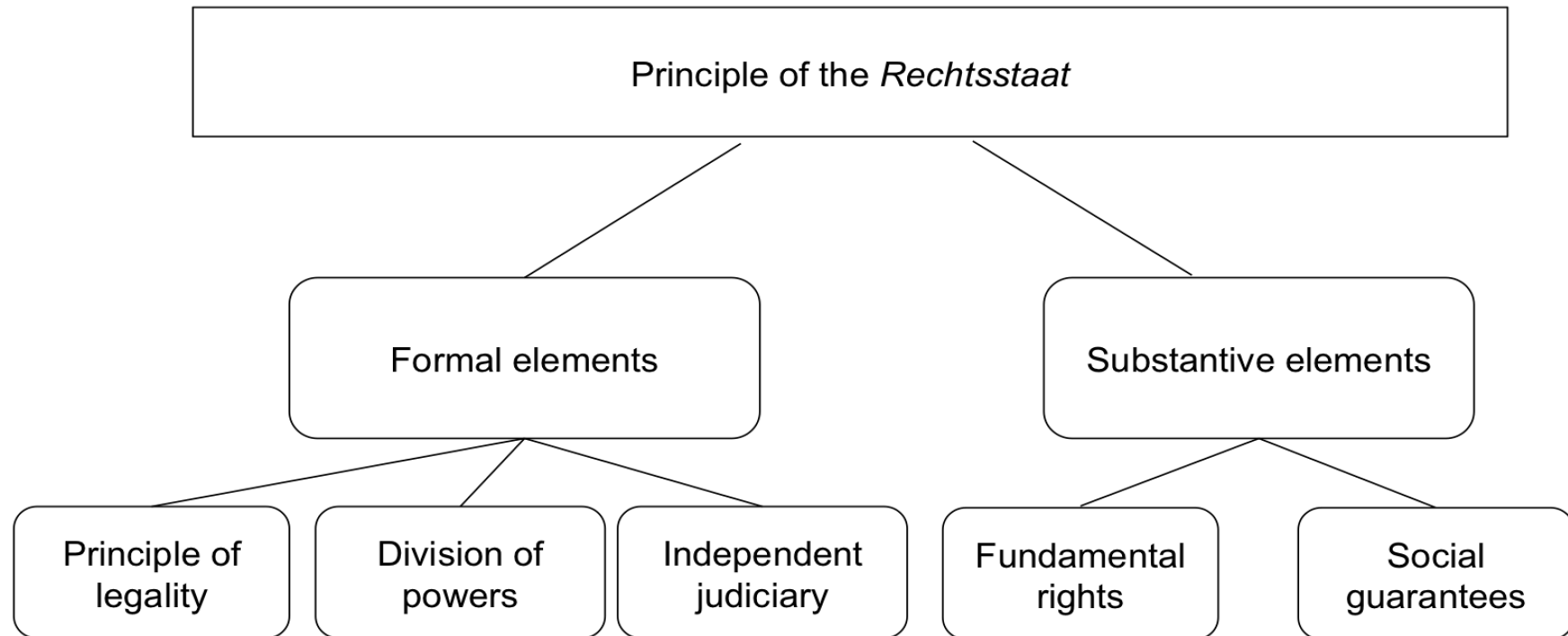
Germany (19th century)

A „thin“ concept of the Rechtsstaat developed including just formal elements.

Continental Europe (after Second World War)

A more „thick“ concept of the Rechtsstaat developed including formal elements and substantive elements.

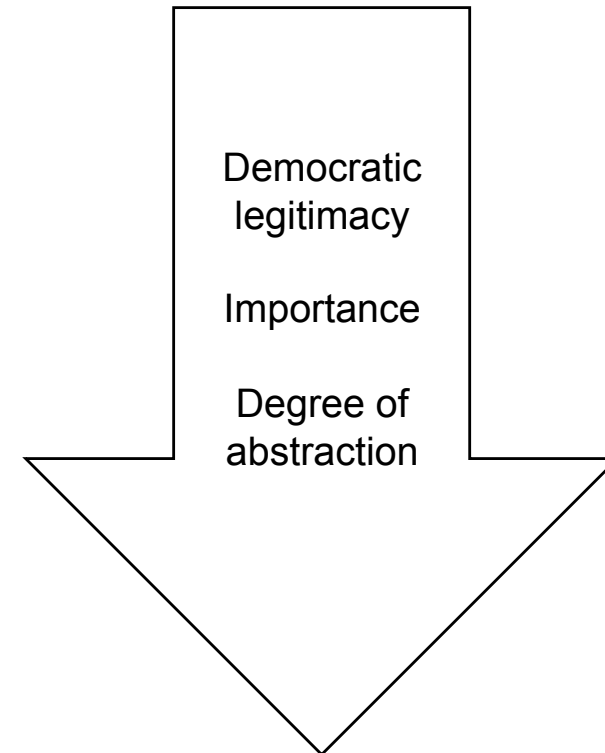
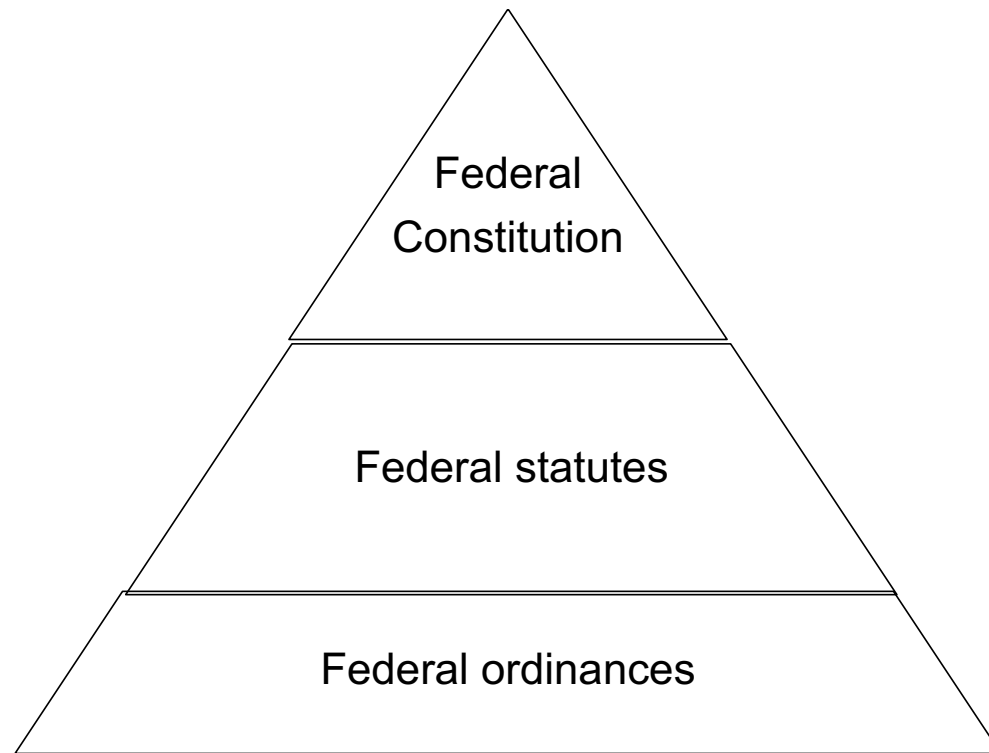
Modern Understanding of the *Rechtsstaat* in Continental Europe



Question

Which legal norms in the Federal Constitution mirror the formal and substantive elements of the Principle of the *Rechtsstaat*?

Form of Legal Acts – Overview



Federal Constitution of the Swiss Confederation, SR 101

Art. 87 Railways and other modes of transport

The legislation on rail transport, cableways, shipping, aviation and space travel is the responsibility of the Confederation.

Hierarchy level:	Constitution
Organ/legitimacy:	People and the cantons; mandatory referendum
Importance:	very high
Degree of abstraction:	high

Federal Statute on Aviation, SR 748.0

Art. 36a Operating Concession

¹ An operating concession is required to operate airports that serve public transport. This concession is issued by the Federal Department of the Environment, Transport, Energy and Communications (DETEC).

² The concession confers the right to operate an airport commercially and, in particular, to levy charges. The concession holder is obliged to make the airport available to all aircraft in national and international traffic, subject to the restrictions laid down in the operating regulations, to ensure proper and safe operation and to provide the necessary infrastructure. (...)

Hierarchy level:	Federal statute
Organ/legitimacy:	Federal Assembly; optional referendum
Importance:	high (Art. 164 para. 1 Cst)
Degree of abstraction:	average

Federal Ordinance on Aviation Infrastructure, SR 748.131.1

Art. 11 Application for Operating Concession

¹ Anyone wishing to obtain an operating concession must submit an application to the DETEC in the number required by the latter. The application must contain:

- a. an indication of who is to be responsible for the installation and operation of the airport;
- b. proof that the applicant has the knowledge, skills and resources to operate an airport in compliance with the obligations arising from the concession, the operating regulations and the law;
- c. proof of registration in the commercial register in Switzerland, except in the case of corporations or public law institutions;
- d. an overview of the planned financing of airport operations;
- e. the operating regulations (...).

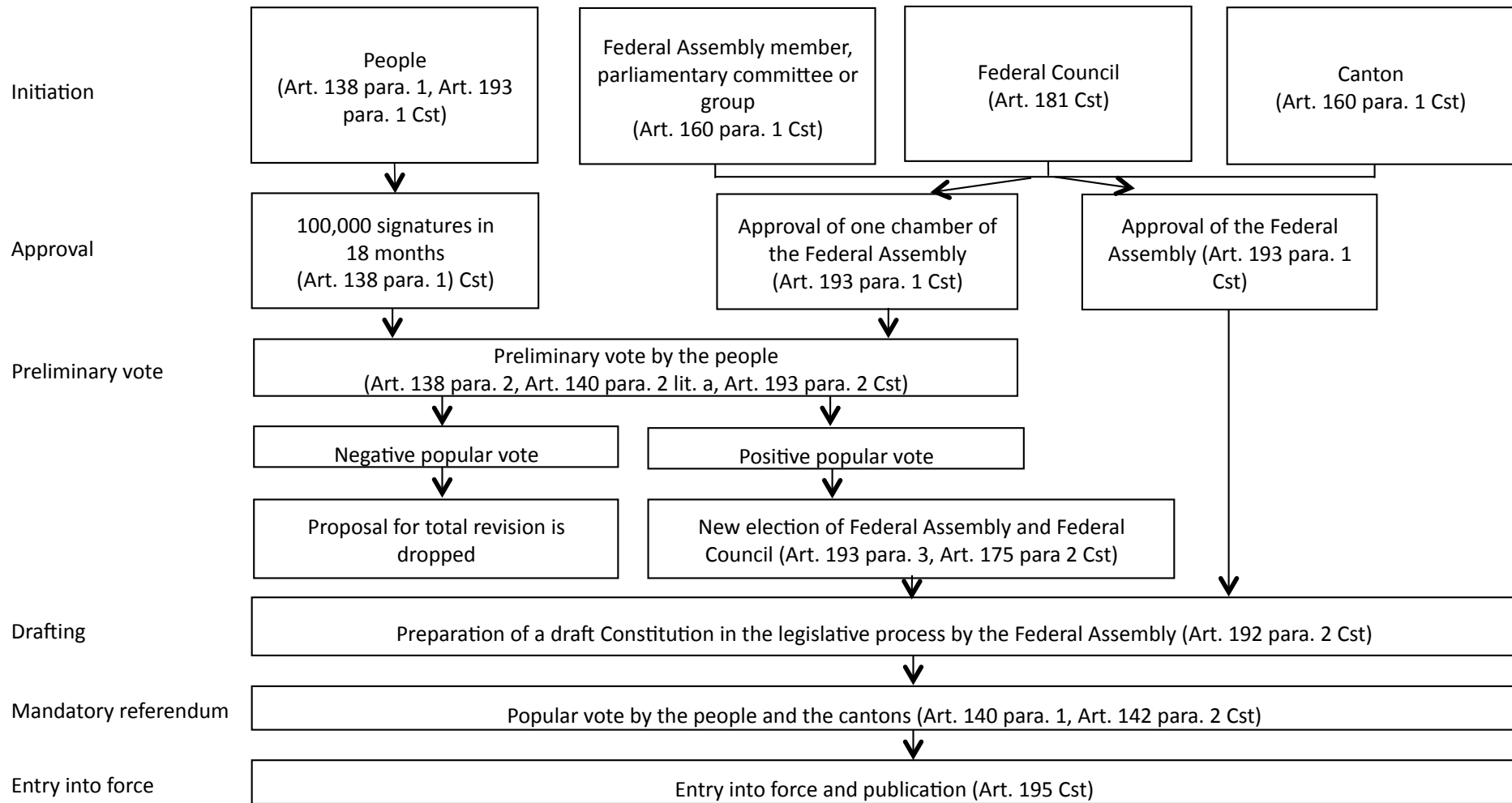
Hierarchy level:	Federal ordinance
Organ/legitimacy:	Federal Council
Importance:	low
Degree of abstraction:	low

Form of Legal Acts – Questions

Your friend has heard the following news and asks you to explain the form and procedure for the legal enactments mentioned:

1. The member of the Canton of Zurich in the Council of States feels that the procedure to issue an operating concession for an airport by the Federation is too complex. As a matter of fact, he feels that the entire Federal Constitution is outdated. The Federal Assembly agrees and asks you about the next procedural steps.

Total revision of the Constitution

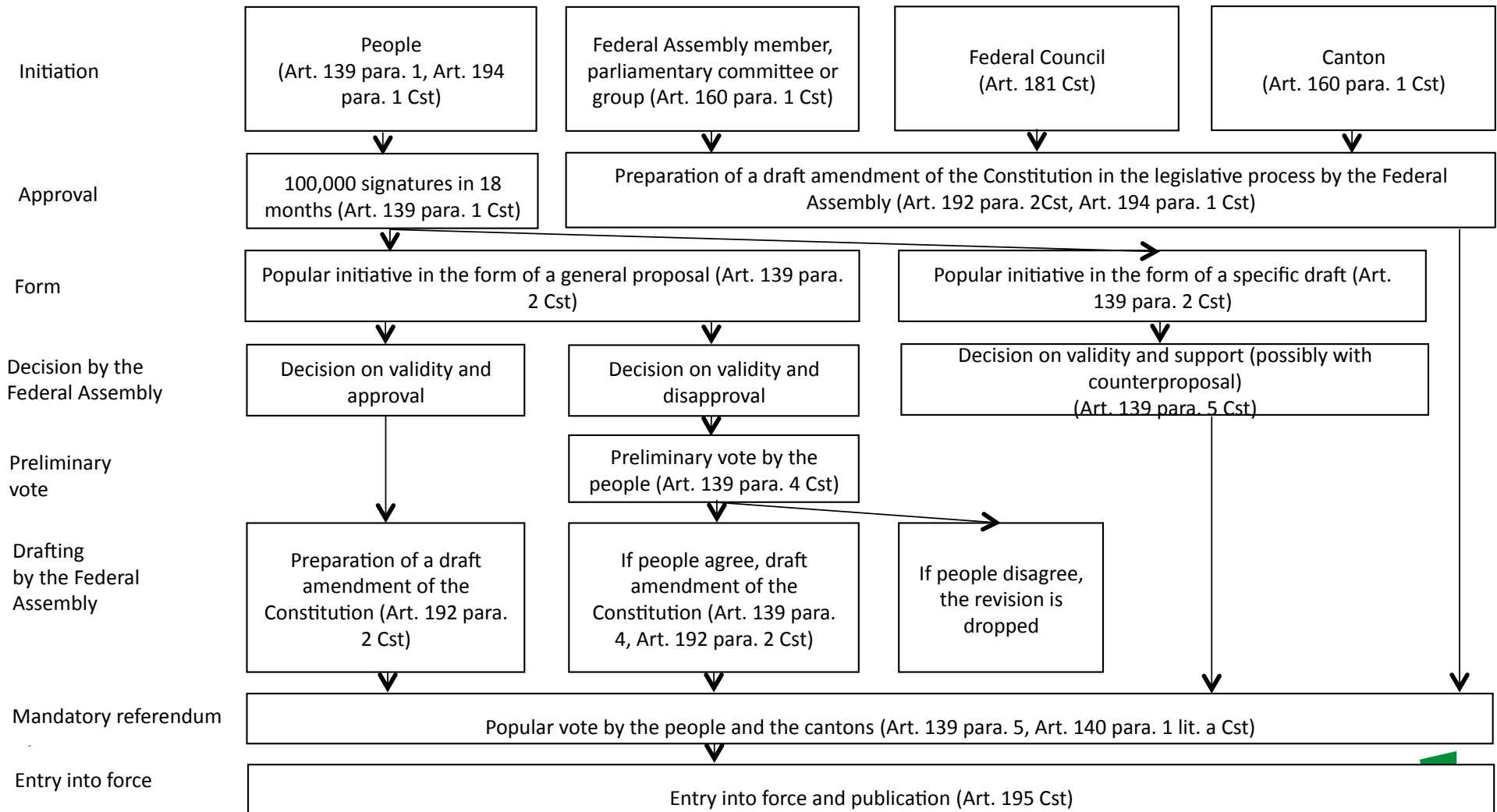


Form of Legal Acts – Questions

Your friend has heard the following news and asks you to explain the form and procedure for the legal enactments mentioned:

2. The Federal Council wants to give the cantons more responsibilities regarding the legislation on aviation. In fact, the cantons should be the only ones to have the competency to regulate aviation and thus to issue concessions for airports.

Partial revision of the Constitution

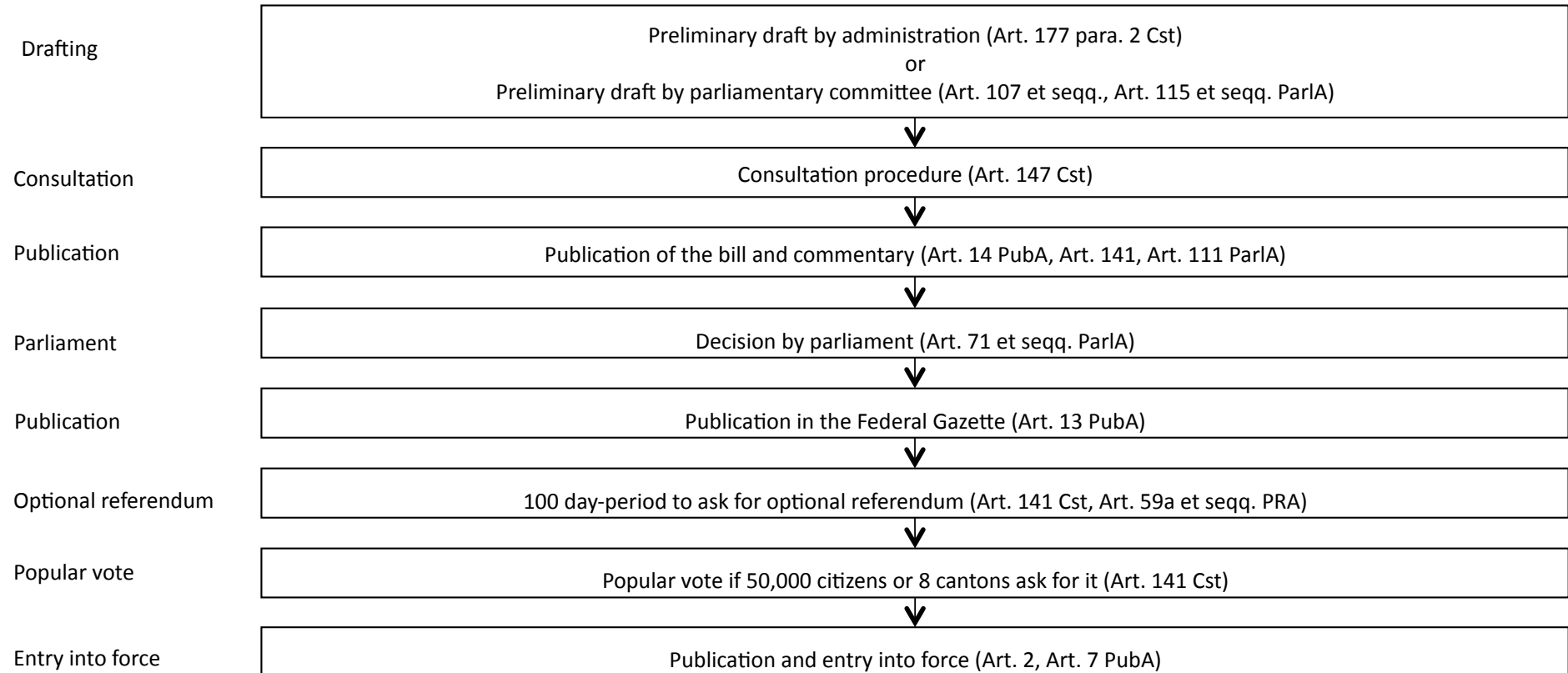


Form of Legal Acts – Questions

Your friend has heard the following news and asks you to explain the form and procedure for the legal enactments mentioned:

3. The Federal Council wants to give the cantons more responsibilities regarding the granting of a concession for airports. In fact, the cantons should be the only ones to issue concessions for airports on their territory.

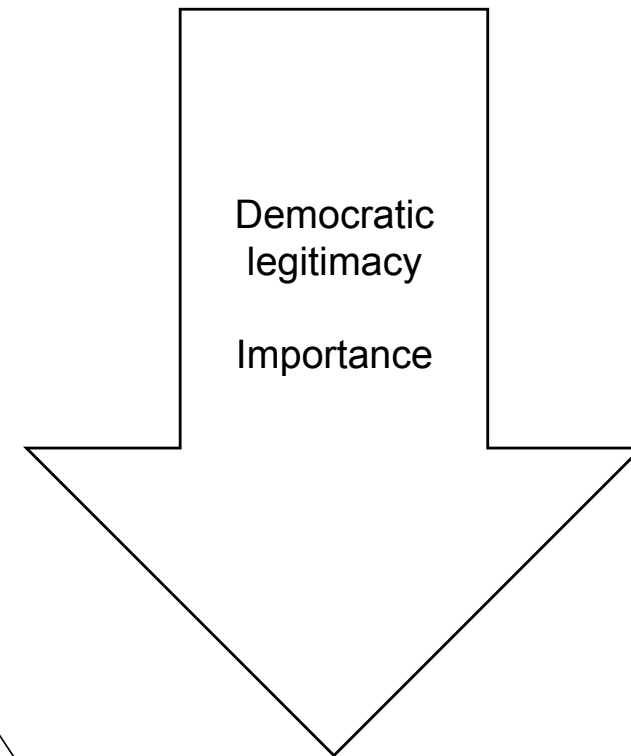
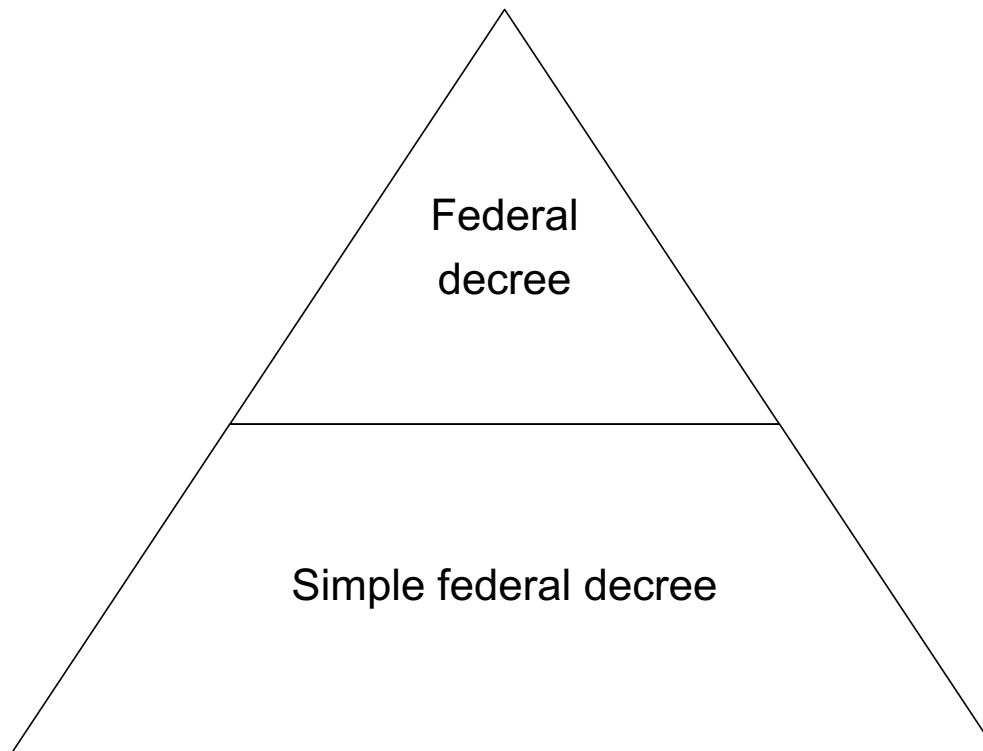
Enactment of a federal statute



Form of Legal Acts – Overview

Form	Organ	Referendum	Democratic legitimacy
Constitution	People and cantons (Art. 195, Art. 142 para. 2 Cst)	Mandatory referendum (Art. 140 para. 1 lit. a Cst)	Highest
Federal statutes	Federal Assembly (Art. 163 para. 1 Cst)	Optional referendum (Art. 141 para. 1 lit. a-b Cst) (exception: mandatory referendum in Art. 140 para. 1 lit. c, Art. 165 Cst)	High
Ordinances	Federal Assembly (Art. 163 para. 1 Cst); Federal Council (Art. 182, Art. 185 para. 3 Cst); other state authorities (based on federal statute, Art. 164 para. 2 Cst)	-	Low

Form of Legal Acts – Overview



Form of Legal Acts – Overview

Form	Organ	Referendum	Democratic legitimacy
Federal decree	Federal Assembly (Art. 163 para. 2 Cst)	Mandatory or optional referendum (e.g. mandatory Art. 140 para. 1 lit. a, b Cst; e.g. optional referendum Art. 141 Abs. 1 lit. c Cst)	High
Simple federal decree	Federal Assembly (Art. 163 para. 2 Cst)	-	Low

Form of Legal Acts – Question

Discuss the form for the following enactments of the Federal Assembly :

1. The Federal Assembly adopts the budget for 2027 (Art. 167 Cst).
2. The Federal Assembly approves the accession of Switzerland to the World Trade Organization (an international organization).

Federal Constitution of the Swiss Confederation, SR 101

Art. 167 Finance

The Federal Assembly determines the expenditure of the Confederation, adopts the budget and approves the federal accounts.

Federal Constitution of the Swiss Confederation, SR 101

Art. 141 Optional referendum

¹ If within 100 days of the official publication of the enactment any 50,000 persons eligible to vote or any eight Cantons request it, the following shall be submitted to a vote of the People: (...)

d. international treaties that:

1. are of unlimited duration and may not be terminated,
2. provide for accession to an international organisation,
3. contain important legislative provisions or whose implementation requires the enactment of federal legislation.

Questions

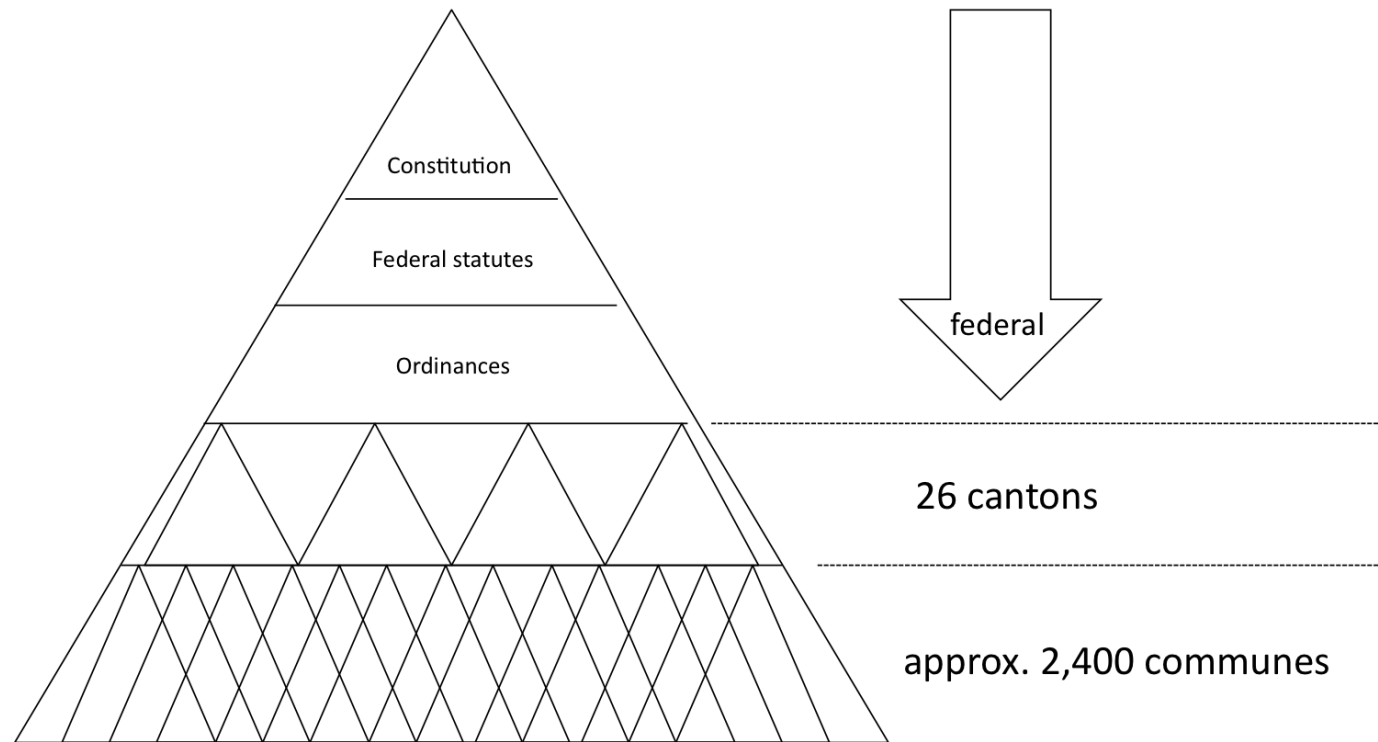
Your friend has heard about the upcoming vote on 8 March 2026 and asks you to explain the form and procedure for the legal enactments mentioned:

1. On 8 March 2026, the vote on the popular initiative called „cash is freedom“ will take place. It calls for banknotes and coins to be forever available in sufficient quantities and that any attempt to replace the Swiss franc with another currency must be adopted by the voters and cantons (new Art. 99 Cst).
2. The Federal Council and Federal Parliament agreed on a counterproposal with a different wording amending Art. 99 Cst that the Swiss franc is the national currency and that the SNB must guarantee the supply of cash.
3. On 8 March 2026, the voters will also decide on the Federal Act on Individual Taxation. Under the bill, married couples will also be taxed individually in future and thus the „marriage tax penalty“ would be abolished.

Hierarchy of Norms

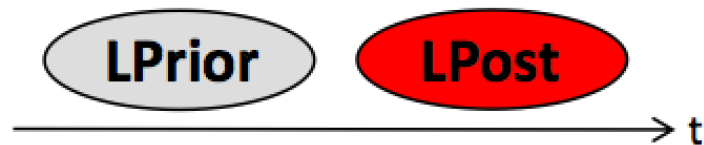
- The legal norm in the highest hierarchical level with the highest democratic legitimacy takes precedence (*lex superior* rule).
- Federal law, irrespective of its hierarchical level, takes precedence over cantonal law (Art. 49 para. 1 Cst).
- Cantonal law in turn overrides any conflicting communal regulation.

Hierarchy of Norms

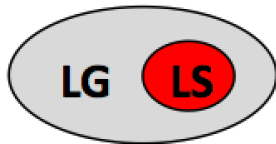


Hierarchy of Norms

- If legal norms on the same hierarchical level conflict, the most recent legal norm generally takes precedence over the older provision (*lex posterior derogat legi priori*).



- Where two laws govern the same situation, a law governing a specific subject matter overrides a law which only governs general matters (*lex specialis derogat legi generali*).



National Law vs. International Law

- The question whether international law or domestic law prevails is controversial.
 - The Federation and the cantons shall respect international law (Art. 5 para. 4 Cst).
 - Federal statutes and international treaties are equally binding for the courts (Art. 190 Cst).
- It was not intended to establish a precedence of international law over domestic law in the Constitution.
- Exception: *ius cogens* (mandatory provisions of international law, Art. 139 para. 3, Art. 194 para. 2 Cst) overrides national law.

National Law vs. International Law

If there is a potential conflict between national and international law:

- A court will interpret domestic Swiss law in such a way that it is compatible with international law.
- If an interpretation of domestic law in conformity with international law is not possible, then different approaches are discussed.

National Law vs. International Law

- **General approach:** The *lex posterior* rule applies. For instance, a newer international treaty takes precedence over a conflicting older federal statute.
- **Schubert doctrine:** In the *Schubert* case (BGE 99 Ib 39), the Federal Supreme Court ruled that a later statutory provision was to prevail if parliament had intentionally departed from the international treaty already in force when enacting the conflicting statute (note however that Switzerland is still bound by the international treaty).
- **Recent decisions:** The Federal Supreme Court has ruled that international human rights treaty provisions must prevail, even if they are not more recent than the provision in a federal statute or even in the Federal Constitution (BGE 139 I 16).

Questions

John, a British national, has lived with his family in Switzerland since birth. One day, he was in a hurry, entered unlawfully his neighbor's garage and stole a bicycle. He was caught and sentenced for the unlawful entry and the burglary. The court also expelled him from Switzerland based on Art. 121 para. 3 lit. a Cst. According to Art. 121 para. 3 lit. a Cst, foreign nationals shall lose their right of residence and all other legal rights to remain in Switzerland if they are convicted for a burglary offence. John claims his right to family life according to Art. 8 ECHR is violated if he has to leave Switzerland. How would you decide?

Federal Constitution of the Swiss Confederation, SR 101

Art. 121 Legislation on foreign nationals and asylum (in force since 9 February 2014)

- ³ Irrespective of their status under the law on foreign nationals, foreign nationals shall lose their right of residence and all other legal rights to remain in Switzerland if they:
- a. are convicted with legal binding effect of an offence of intentional homicide, rape or any other serious sexual offence, any other violent offence such as robbery, the offences of trafficking in human beings or in drugs, or a burglary offence; (...)

European Convention on Human Rights (ECHR), SR 0.101 (in force for Switzerland since 28 November 1974)

Art. 8 Right to respect for private and family life

¹ Everyone has the right to respect for his private and family life, his home and his correspondence. (...)

Questions

- In the Canton of Zurich, there is a cantonal Statute on the Zurich Airport. This cantonal statute conflicts with the Federal Statute on Aviation. Describe the rule to be applied to solve this conflict.
- The Federal Ordinance on Aviation Infrastructure conflicts with the Federal Constitution. Describe the rule to be applied to solve this conflict.
- Assume that the provision about the general aim of the Federal Ordinance on Aviation Infrastructure conflicts with the provision about the application for an operating concession in the same ordinance. Describe the rule to be applied to solve this conflict.

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